

BREYER, J., dissenting

remedy. 446 U. S., at 18–19. The relevant special factors in those cases included whether the court was faced “with a question of ‘federal fiscal policy,’” *Bivens*, *supra*, at 396, or a risk of “deluging federal courts with claims,” *Davis*, *supra*, at 248 (internal quotation marks omitted). *Carlson* acknowledged an additional factor—that damages suits “might inhibit [federal officials’] efforts to perform their official duties”—but concluded that “the qualified immunity accorded [federal officials] under [existing law] provides adequate protection.” 446 U. S., at 19.

Fourth, as the Court recognized later in *Carlson*, a *Bivens* remedy was needed to cure what would, without it, amount to a constitutional anomaly. Long before this Court incorporated many of the Bill of Rights’ guarantees against the States, see Amar, *The Bill of Rights and the Fourteenth Amendment*, 101 Yale L. J. 1193 (1992), federal civil rights statutes afforded a damages remedy to any person whom a state official deprived of a federal constitutional right, see 42 U. S. C. § 1983; *Monroe v. Pape*, 365 U. S. 167, 171–187 (1961) (describing this history). But federal statutory law did not provide a damages remedy to a person whom a federal official had deprived of that same right, even though the Bill of Rights was at the time of the founding primarily aimed at constraining the Federal Government. Thus, a person harmed by an unconstitutional search or seizure might sue a city mayor, a state legislator, or even a Governor. But that person could not sue a federal agent, a national legislator, or a Justice Department official for an identical offense. “[Our] ‘constitutional design,’” the Court wrote, “would be stood on its head if federal officials did not face at least the same liability as state officials guilty of the same constitutional transgression.” *Carlson*, *supra*, at 22 (quoting *Butz v. Economou*, 438 U. S. 478, 504 (1978)).

The *Bivens* Court also recognized that the Court had previously inferred damages remedies caused by violations of certain federal statutes that themselves did not explicitly au-